

\$163.59 paid in benefits. Absent from Attachment 12b(5) are similar statements for payors of the reported medical expenses as to First Health Medical Center of Fresno, Inc. and Sierra Pacific Orthopedic Center. As to First Health, it appears that there were involvement from Blue Cross and counsel's office. These items need addressing.

Item 13 reports costs and fees sought. It is unclear why Minor is billed with what appears to be the entire costs of the case, despite the action being brought on behalf of four other beneficiaries. There is no apportionment of the costs, and the petition fails to explain why Minor should bear all costs of this action. Additionally, the petition reports a total settlement of \$80,000 among the five beneficiaries. However, and unexpectedly, counsel reports receiving no other compensation from any other source at Item 17(f). The petition fails to address why Minor bears the entirety of the attorney fees assessed in this action.¹

For the above reasons, the petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/22/2026.
(Judge's initials) (Date)

¹ The court further notes that the fee agreement was with Decedent, and not the estate. Given the position that this is a survival action, the court infers that an agreement was made to continue representation through the estate. That inference however would strongly suggest that attorney fees are being claimed against every portion of the settlement, for which the petition does not properly disclose.

(35)

Tentative Ruling

Re: ***Lopez v. Nationwide National Insurance Company***
Superior Court Case No. 26CECG01234

Hearing Date: September 23, 2026 (Dept. 503)

Motion: Motion for Evidentiary Hearing

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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